

		<u>Defendant Brad New's Motion to Strike Portions of First Amended Class Action Complaint</u> Defendant Brad New moves to strike portions of plaintiffs Kim Ellerbe, Brittany Akal and Tiffany Washington's first amended class action complaint. Plaintiffs did not file an opposition. In a concurrently-issued ruling, the court sustained defendant's unopposed demurrer to the five causes of action in the first amended complaint without leave to amend. Defendant's unopposed motion to strike is therefore denied as moot. Defendant to give notice. <u>Initial Case Management Conference</u> The parties did not file an initial case management conference statement as ordered by the court. 4/30/26 Order (ROA 86); 4/7/26 Order (ROA 27). Plaintiff filed a case management conference statement utilizing Judicial Council Form CM-110 (ROA 69), which, as stated in the court's April 7, 2026 order, is not used in this Complex Civil Department. 4/7/26 Order (ROA 27) ("The Initial Case Management Conference Statement shall be filed at least 5 court days before the conference. <i>Counsel should use pleading paper, not Judicial Council Form CM-110</i>, and should include in the statement a discussion of the applicable subjects set forth in California Rules of Court 3.727 and 3.750(b). The parties are encouraged to meet and confer and file a joint statement") (italics added). Nevertheless, in light of the court's concurrently-issued ruling sustaining defendant Brad New's unopposed demurrer to the first amended class action complaint without leave to amend, the September 17, 2026 Initial Case Management Conference is vacated. Clerk to give notice.
5	Escoto v. VPM Management, Inc. 2021-01232970	<u>Maria Yesenia Escoto Calderon and Rosario Esmaralda Escoto's Motion for Leave to Substitute Successors-in-Interest</u> Maria Yesenia Escoto Calderon and Rosario Esmaralda Escoto move pursuant to Civil Procedure Code section 377.31 for leave to substitute themselves as plaintiffs and successors-in-interest for plaintiff and decedent Jose Escoto in this class action and PAGA lawsuit. For the following reasons, the motion is denied without prejudice. Section 377.31 provides: "On motion after the death of a person who commenced an action or proceeding, the court shall allow a pending action or proceeding that does not abate to be continued by the decedent's personal representative or, if none, by the decedent's successor in interest." Pursuant to section 377.32(a), a person who seeks to commence an action or proceeding or to continue a pending action or proceeding as the decedent's successor in interest shall execute and file an affidavit or a declaration stating all of the following:

		(1) the decedent's name; (2) the date and place of the decedent's death; (3) "No proceeding is now pending in California for administration of the decedent's estate"; (4) if the decedent's estate was administered, a copy of the final order showing the distribution of the decedent's cause of action to the successor in interest; (5) either of the following, as appropriate, with facts in support thereof: (A) "The affiant or declarant is the decedent's successor in interest (as defined in Section 377.11 of the California Code of Civil Procedure) and succeeds to the decedent's interest in the action or proceeding"; or (B) "The affiant or declarant is authorized to act on behalf of the decedent's successor in interest (as defined in Section 377.11 of the California Code of Civil Procedure) with respect to the decedent's interest in the action or proceeding"; (6) "No other person has a superior right to commence the action or proceeding or to be substituted for the decedent in the pending action or proceeding"; and (7) "The affiant or declarant affirms or declares under penalty of perjury under the law of the State of California that the foregoing is true and correct." In addition, a certified copy of the decedent's death certificate shall be attached to the affidavit or declaration. Civ. Proc. Code § 377.32(c). Maria Yesenia Escoto Calderon and Rosario Esmaralda Escoto filed declarations (ROA 150, 151) in support of the motion. The declarations include all of the statements required by section 377.32(a) and a copy of Jose Escoto's death certificate (ROA 150, Ex. 1; ROA 151, Ex. 1). The motion does not, however, address whether a successor-in-interest may be substituted as a plaintiff for a class representative in a class action and for a representative plaintiff in a PAGA action. As the operative first amended complaint (ROA 12) alleges both class allegations and a PAGA claim, the motion is denied without prejudice to Maria Yesenia Escoto Calderon and Rosario Esmaralda Escoto filing another motion to substitute themselves as plaintiffs and successors-in-interest that addresses both of those issues. Plaintiff to give notice. <u>Status Conference</u> The parties did not file a joint status conference statement as ordered by the court. 6/4/26 Order (ROA 155).
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6	Harris v. Orange County Transportation Authority 2022-01284718	<u>Plaintiffs Wayne Harris and Marlene McKinney's Motion for Summary Adjudication</u> Plaintiffs Wayne Harris and Marlene McKinney move for summary adjudication of a claimed issue of duty and against two affirmative defenses asserted by defendant Orange County Transportation Authority (OCTA) and two affirmative defenses asserted by defendant California Department of Transportation (CalTrans). For the following reasons, plaintiffs' motion is denied. A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if that party contends that the cause of action has no merit or that there is no affirmative defense thereto, or that there is no merit to an affirmative defense as to any cause of action, or both, or that there is no merit to a claim for damages, as specified in section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff. Cal. Civ. Proc. Code § 437c(f)(1). A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty. <i>Id.</i> A motion for summary adjudication "shall proceed in all procedural respects as a motion for summary judgment." <i>Choochagi v. Barracuda Networks, Inc.</i> (2020) 60 Cal.App.5th 444, 453. "The moving party 'bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if [the movant] carries [this] burden of production,' the burden of production shifts to the opposing party 'to make a prima facie showing of the existence of a triable issue of material fact.'" <i>Id.</i> Plaintiffs' complaint alleges two causes of action for inverse condemnation and nuisance. Plaintiffs allege their property located at 17199 Buttonworth Street in Fountain Valley, California has "experienced on-going damage, vibrations and invasion from noise, dust, debris, storm water runoff, among other things, caused by the 405 Freeway construction being carried out by OCTA." Complaint ¶¶ 1, 7. Plaintiffs allege the property "has suffered from continued and expanding cracking, earth movement, vibrations, noise, dust and debris caused by on-going . . . construction," and that the construction has caused widespread cracking along the concrete . . . [c]racking in the home . . . [and] flooding . . . into the backyard." Complaint ¶ 10. <i>Issue Nos. 1 and 2</i>